CONFIDENTIAL CLIENT FILE

Williams v Ashford Logistics PLC -- Employment Tribunal Claim

File Reference: SW/2025/1104
Date Opened: 28 January 2025
Fee Earner: Mr. Richard Owens, Partner
Client: Ms. Sarah Williams
Respondent: Ashford Logistics PLC

1. Client Details

Ms. Sarah Williams, aged 38, resides at 7 Birchwood Avenue, Manchester, M14 5RG. Ms. Williams holds a BSc in Supply Chain Management from the University of Manchester (2009). She was employed by Ashford Logistics PLC as a Regional Operations Manager from 2 September 2018 until her summary dismissal on 17 December 2024. Her annual salary at the date of dismissal was GBP 62,000 with an additional performance bonus of up to 15% (approximately GBP 9,300 per annum).

2. Employment History

Ms. Williams joined Ashford Logistics PLC on 2 September 2018 as an Operations Coordinator (Grade 5). She was promoted to Senior Operations Coordinator (Grade 6) on 1 April 2020. On 15 January 2022, she was promoted to Regional Operations Manager (Grade 8), the position she held until her dismissal. Throughout her employment, Ms. Williams received consistently positive performance appraisals. Her most recent appraisal, dated 30 June 2024, rated her as 'Exceeds Expectations' with an overall score of 4.2 out of 5.0.

Her total length of continuous service at the date of dismissal was 6 years and 3 months.

3. Circumstances of Dismissal

On 28 November 2024, Ms. Williams raised a formal grievance with Ashford's HR department regarding the conduct of her line manager, Mr. Paul Greyson (Director of Northern Operations). The grievance alleged:

(a) Persistent bullying behaviour, including shouting and public humiliation in team meetings on three documented occasions (4 October, 18 October, and 11 November 2024);

(b) Failure to follow the company's flexible working policy after Ms. Williams requested a modified schedule to care for her elderly mother; and

(c) Exclusion from a senior leadership development programme for which she met all published eligibility criteria.

On 10 December 2024, before the grievance investigation was concluded, Ms. Williams was invited to a disciplinary hearing. The stated grounds were 'gross misconduct' relating to an alleged unauthorised disclosure of confidential client shipping schedules. On 17 December 2024, Ms. Williams was summarily dismissed.

4. Evidence in Support of Claim

4.1 The alleged confidential disclosure concerned an email Ms. Williams sent on 15 November 2024 to a client contact (Mr. Derek Tan, Logistics Manager at Briarfield Retail Ltd) containing an updated delivery schedule. Ms. Williams states this was sent in the ordinary course of business and was expressly authorised by her previous line manager, Ms. Fiona West, who left the company in August 2024.

4.2 Three colleagues -- Ms. Karen Hughes, Mr. Tariq Rashid, and Ms. Nina Volkov -- have confirmed in writing that sharing delivery schedules with key clients was standard practice within the Northern Operations division.

4.3 The disciplinary investigation file (obtained via subject access request under UK GDPR, Article 15) reveals that Mr. Greyson personally referred the matter for disciplinary action on 5 December 2024, five working days after the grievance was submitted against him. The investigation was conducted by Ms. Laura Beckett (HR Business Partner) who reported to Mr. Greyson.

5. Heads of Claim

Ms. Williams brings the following claims before the Employment Tribunal:

5.1 Unfair Dismissal (Employment Rights Act 1996, s.94): The dismissal was both substantively and procedurally unfair. The alleged conduct did not constitute gross misconduct, and the dismissal was a retaliatory response to the protected grievance.

5.2 Automatic Unfair Dismissal (ERA 1996, s.103A): The principal reason for dismissal was that Ms. Williams made a protected disclosure (whistleblowing) within her grievance regarding Mr. Greyson's failure to comply with company policies.

5.3 Detriment for Making a Protected Disclosure (ERA 1996, s.47B): The disciplinary proceedings were initiated as a detriment for raising the grievance.

5.4 Breach of Contract: Summary dismissal without notice, entitling Ms. Williams to damages equivalent to her contractual notice period of 12 weeks (GBP 14,307.69).

6. Schedule of Loss

Basic Award: GBP 6,510 (6 complete years x 1 week's pay capped at GBP 1,085)
Compensatory Award (estimated 12 months):
- Loss of earnings (12 months x GBP 5,166.67): GBP 62,000
- Loss of bonus: GBP 9,300
- Loss of pension contributions (6% employer): GBP 3,720
- Loss of statutory rights: GBP 500

Notice pay (12 weeks): GBP 14,307.69
Injury to feelings (Vento middle band): GBP 15,000 to GBP 28,000

Total estimated claim value: GBP 111,337.69 to GBP 124,337.69

The ACAS Early Conciliation certificate reference is EC/2025/00471, issued on 20 January 2025. The ET1 must be submitted by 17 March 2025.

7. Respondent's Likely Defence

It is anticipated that Ashford Logistics PLC will argue:

(a) The disclosure to Briarfield Retail Ltd constituted a genuine breach of the company's Information Security Policy (Version 3.2, July 2023);

(b) The timing of the disciplinary action relative to the grievance was coincidental;

(c) The investigation was conducted independently by HR.

These defences are undermined by the evidence that Mr. Greyson personally initiated the disciplinary referral and that Ms. Beckett's line of reporting created a conflict of interest. Furthermore, the Respondent's own policy (Section 4.7) permits sharing of operational schedules with contracted clients under existing service level agreements.

8. Risk Assessment

Prospects of success on the unfair dismissal claim are assessed at 75-80%. The automatic unfair dismissal / whistleblowing claim carries a higher evidential burden but the circumstantial evidence of causation (timing, conflict of interest) is strong -- prospects estimated at 60-65%.

Recommendation: Proceed with ET1 submission and seek judicial mediation at the preliminary hearing stage.